

statute of limitations grounds, contending that Hacienda's claims are untimely. EBMUD asserts that Hacienda presented a government claim for indemnity in January 2023, that the claim was rejected in April 2023, and that Hacienda was therefore required to file any cross-complaint against EBMUD by October 2023. According to EBMUD, Hacienda's later-filed cross-complaint is time-barred.

In opposition, Hacienda argues that its FAXC seeks indemnity for potential liability arising from a newly identified theory of negligence; namely, the alleged negligent handling of Plaintiff's government claim based on testimony elicited at the September 2024 deposition of EBMUD's representative. Hacienda contends that, because its indemnity claims are premised on this theory, the statute of limitations does not bar the claims.

Because Hacienda's opposition frames its claims as contingent on Plaintiff's ability to state a viable claim against EBMUD for negligent claims handling, the Court finds that it is appropriate to defer ruling on EBMUD's demurrer to the FAXC pending resolution of EBMUD's demurrer Plaintiff's operative complaint.

If Plaintiff is unable to state a viable claim against EBMUD, Hacienda's cross-claims may be moot. If Plaintiff is granted leave to amend and files an amended pleading asserting claims against EBMUD, the Court may revisit EBMUD's demurrer to the cross-complaint at that time.

If Plaintiff contests the tentative ruling on EBMUD's demurrer to the 4AC, Hacienda should be prepared to appear, as the disposition of that demurrer may affect the continued demurrer to the cross-complaint.

17. 9:00 AM CASE NUMBER: N23-1456

CASE NAME: PETITION OF: CURIA GLOBAL, INC.

***HEARING ON MOTION IN RE: SEAL EVIDENCE SUBMITTED IN SUPPORT OF PETITIONERS MOTION TO AMEND JUDGMENT**

FILED BY: VAXANIX BIO, LTD.

TENTATIVE RULING:

Third parties Vaxanix Bio, Ltd. and Vaxanix Bio Acquisition Corp. II (the "Vaxanix Parties") filed a Motion to Seal Evidence Submitted in Support of Petitioner's Motion to Amend Judgment on November 13, 2025 (the "Motion to Seal"). The Motion to Seal was set for hearing on January 12, 2025. The motion is unopposed.

Background

The Court entered its Amended Judgment herein on May 28, 2024 (the "Judgment"), confirming an arbitration award in favor of petitioner Curia Global, Inc. ("Curia") as against the named respondent ("BryoLogyx").

On November 4, 2025, Curia filed a motion to amend the Judgment to add the Vaxanix Parties as "Judgment Debtors by Succession." See Notice of Motion and Motion to Amend Judgment filed November 4, 2025 (the "Motion to Amend Judgment"). The Motion to Amend Judgment is presently set

for hearing on March 23, 2026.

This motion seeks to seal certain portions of the Motion to Amend Judgment.

A prior motion to seal by Curia was denied by the Court in October 2025 in connection with a previous motion to amend the Judgment. See Minute Order dated October 13, 2025 (court declined the sealing of court records requested, finding the request overbroad and lacking in a showing of a specific rationale as to specific information to be sealed).

This more narrowly tailored motion seeks to seal portions of Exhibit A-6 to the Declaration of Richard A. Tilghman IV filed November 4, 2025 (the “Tilghman Declaration”) described as “the Agreement and Plan of Merger between Vaxanix Bio, Vaxanix Acquisition, and BryoLogyx” (the “Record to be Sealed”).

As filed on November 4, 2025, the Tilghman Declaration contained a copy of the Record to be Sealed with a few portions redacted from the public filing.

Analysis

Under the California Rules of Court, “[u]nless confidentiality is required by law, court records are presumed to be open.” Rule 2.550(c) of the California Rules of Court (“CRC”). Public access to civil proceedings serves to (i) demonstrate that justice is meted out fairly, thereby promoting public confidence in such governmental proceedings; (ii) provide a means by which citizens scrutinize and check the use and possible abuse of judicial power; and (iii) enhance the truthfinding function of the proceeding. *NBC Subsidiary (KNBC-TV), Inc. v. Superior Court* (1999) 20 Cal.4th 1178, 1219.

CRC Rule 2.551(a) provides:

A record must not be filed under seal without a court order. The court must not permit a record to be filed under seal based solely on the agreement or stipulation of the parties.

See CRC Rule 2.551(a).

A court may order that a record be filed under seal only if it expressly finds facts that establish:

- (1) There exists an overriding interest that overcomes the right of public access to the record;
- (2) The overriding interest supports sealing the record;
- (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed;
- (4) The proposed sealing is narrowly tailored; and
- (5) No less restrictive means exist to achieve the overriding interest.

See CRC Rule 2.550(d)(1)-(5).

The law favors maximum public access to judicial proceedings and court records. *Alfaro v. Superior Court* (2020) 58 Cal.App.5th 371, 386, quoting *Pantos v. City and County of San Francisco* (1984) 151 Cal.App.3d 258, 262-63. “Judicial records are historically and presumptively open to the public and there is an important right of access which should not be closed except for **compelling** countervailing reasons.” *Id.* (emphasis added).

The supporting declaration describes that the Vaxanix Parties only seek to seal certain very specific portions of the Record to be Sealed. See Declaration of Mark Germain in Support of Motion to Seal (the “Supporting Declaration”), ¶13 (“The only information that the Vaxanix Entities seek to seal is the percentages of the sublicense fees or royalty payments earned by Vaxanix Acquisition that are passed

on to the BryoLogyx securityholders, which are stated in the Allocation Schedule.”). The Supporting Declaration indicates that this information constitutes sensitive non-public financial and business information whose general disclosure would raise a substantial probability of prejudice to the Vaxanix Parties. *Id.* For ease of reference, this information is referred to as the “Sensitive Non-Public Information.”

The Court finds that there exists an overriding interest that overcomes the right of public access to the specific Sensitive Non-Public Information addressed in the Supporting Declaration. The Court further finds that this overriding interest supports sealing the Sensitive Non-Public Information and there exists a substantial probability that the overriding interest will be prejudiced if the Sensitive Non-Public Information is not sealed. Subject to resolution of the issue discussed below, the Court further finds that the proposed sealing of the Sensitive Non-Public Information is narrowly tailored and that there is no less restrictive means exist to achieve the overriding interest.

However, the Court must confirm what specific portion(s) of the Record to be Sealed contain such Sensitive Non-Public Information.

The Supporting Declaration refers to the “appendix to the Merger Agreement, titled ‘Allocation Schedule,..’” but does not cite page and line numbers or other clear designations of the specific portions constituting the Sensitive Non-Public Information.

Moreover, there appears to be a disconnect because the Vaxanix Parties indicate that “Petitioner Curia has submitted the Merger Agreement in its entirety with its motion to amend the judgment.” See Supporting Declaration, ¶12.

As noted above, however, the Record to be Sealed appears to have already had various portions redacted, as it was filed on November 4, 2025. It is not clear to the Court whether the Vaxanix Parties concur that those redactions, in fact, redact the portions containing the Sensitive Non-Public Information.

Most of those redactions appear on the “Allocation Schedule” portions (pages 283, 284 and 286 of the Tilghman Declaration and a part of Exhibit A-6). Another redaction appears elsewhere in the document (page 285 of the overall filing pagination). Accordingly, it would appear that the Sensitive Non-Public Information has been redacted out of the Record to be Sealed.

As set forth below, the parties are to appear to confirm that the portions redacted from the Record to be Sealed properly redact the Sensitive Non-Public Information.

Disposition

The Court finds and orders as follows:

1. Parties to Appear.

18. 9:00 AM CASE NUMBER: N25-2269
CASE NAME: PETITION OF: ELAINE LAVAN
***HEARING ON MOTION IN RE: PRELIMINARY INJUNCTION**